

21STCV35747 21STCV35747

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-01

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C310%2C07%2F01%2F2026

Source SHA-256: eeb83b4933995cde8f7be81ecddcf7f01661cd25850471480911fade8628e524

Case Number: 21STCV35747 Hearing Date: July 1, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 1, 2026

Case Name: Vittayarukskul, et al. v. Hernandez, et al.

Case No.: 21STCV35747

Matter: OSC re: Default Judgment

Ruling: The Default Judgment Application is denied without prejudice.

Plaintiff to give notice.

Plaintiff alleges Defendant's negligent conduct burned down Plaintiff's real property. Plaintiff now seeks a default judgment against Defendant Hernandez.

While Plaintiff requests \$1,160,010.98 in damages, the Complaint and FAC do not make any specific reference to damages. This is problematic as "[t]he relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint, in the statement required by Section 425.11, or in the statement provided for by Section 425.115" (Code Civ. Proc. § 580.) "A demand for 'damages according to proof' is insufficient; such a demand does not provide adequate notice to sustain a default judgment." (Yu v. Liberty Surplus Ins. Corp. (2018) 30 Cal.App.5th 1024, 1027.) Further, phrases such as "in an amount not less than" do not give notice for the purposes of Code Civ. Proc. § 580. (Electronic Funds Solutions, LLC v. Murphy (2005) 134 Cal.App.4th 1161, 1173-1174.) Code Civ. Proc. § 580 applies even when a defendant has defaulted after having filed an answer and having participated in discovery. (See Greenup v. Rodman (1986) 42 Cal.3d 822, 828; Elec. Funds Sols., LLC v. Murphy (2005) 134 Cal.App.4th 1161, 1175.)

Thus, Plaintiff can either accept the jurisdictional minimum of \$35,001 or else amend the FAC's allegations as to damages, which would be a material change opening Defendant's default. (Cole v. Roebling Const. Co. (1909) 156 Cal. 443; Leo v. Dunlap (1968) 260 Cal.App.2d 24, 27-28.)

Also, Plaintiff failed to dismiss the Doe Defendants.

Accordingly, the Default Judgment Application is denied without prejudice.

Plaintiff to give notice.